

the prosecutor unconstitutionally *withheld* information from the court. Immunity from a suit based upon a claim that the prosecutor suppressed or withheld evidence would *discourage* precisely the disclosure of evidence sought to be encouraged by the rule granting prosecutors immunity from defamation suits. *Denial* of immunity for unconstitutional withholding of evidence would encourage such disclosure. A prosecutor seeking to protect himself from liability for failure to disclose evidence may be induced to disclose more than is required. But, this will hardly injure the judicial process.⁸ Indeed, it will help it. Accordingly, lower courts have held that unconstitutional suppression of exculpatory evidence is beyond the scope of "duties constituting an integral part of the judicial process" and have refused to extend absolute immunity to suits based on such claims. *Hilliard v. Williams*, 465 F. 2d 1212, 1218 (CA6), cert. denied, 409 U. S. 1029 (1972); *Haaf v. Grams*, 355 F. Supp. 542, 545 (Minn. 1973); *Peterson v. Stanczak*, 48 F. R. D. 426 (ND Ill. 1969). Contra, *Barnes v. Dorsey*, 480 F. 2d 1057 (CA8 1973).

Equally important, unlike constitutional violations committed in the courtroom—improper summations, introduction of hearsay evidence in violation of the Confrontation Clause, knowing presentation of false testimony—which truly are an "integral part of the judicial process," *ante*, at 416, the judicial process has no way to prevent or correct the constitutional violation of suppressing evidence. The judicial process will by definition be ignorant of the violation when it occurs; and it is

⁸ There may be circumstances in which ongoing investigations or even the life of an informant might be jeopardized by public disclosure of information thought possibly to be exculpatory. However, these situations may adequately be dealt with by *in camera* disclosure to the trial judge. These considerations do not militate against disclosure, but merely affect the manner of disclosure.